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| CASE #      | CASE NAME           | HEARING NAME                                    |
|-------------|---------------------|-------------------------------------------------|
| CVSW2300121 | BLACKBURN VS BERNAL | MOTION FOR SUMMARY JUDGMENT BY CARLOS RODRIGUEZ |

**Tentative Ruling:** Motion for Summary Judgment is Denied. This lawsuit involves multiple consolidated complaints and cross-complaints. Rodriguez' motion fails to identify whom this motion is brought against. No specific party is identified in Rodriguez' notice. Instead, he states that he seeks summary judgment on the "ground that All Plaintiffs cannot establish one or more essential element of the negligent entrustment claim and/or Defendant has a complete defense." The separate statement does not separate out any causes of action or claims asserted by each plaintiff or cross-complainant. It also only identifies one plaintiff Paul Blackburn. However, neither Paul Blackburn nor his successors in interest have asserted a claim against Rodriguez. While the motion does identify all the complaints and cross-complaints and the parties asserting these pleadings in the memorandum of points and authorities, his analysis refers only to "plaintiff", and he only discusses negligent entrustment.

A moving party is required to provide notice when filing their motion for summary judgment. (CCP § 437c(a)(2).) "If summary judgment is sought, the notice of motion should name the party in whose favor and against whom the judgment is sought and the amount thereof, if applicable. (A notice simply directed 'to all opposing parties' may not constitute adequate notice in multiparty cases where different relief is sought against different parties.)" (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 10:85.) This motion should be denied because of insufficient notice. It is unclear who this motion is sought against.

Additionally, to the extent that it is brought against State or RV Concrete, it fails because it does not address any of the causes of action set forth in their complaints. The motion only discusses negligent entrustment. State and RV Concrete each assert a cross-complaint that alleges claims for equitable indemnity, contribution, comparative fault, and declaratory relief. Rodriguez fails to discuss these claims or how the negligent entrustment claim impacts these claims.

2.

| CASE #      | CASE NAME           | HEARING NAME                                                                                              |
|-------------|---------------------|-----------------------------------------------------------------------------------------------------------|
| CVSW2300121 | BLACKBURN VS BERNAL | MOTION FOR SUMMARY JUDGMENT BY THE STATE OF CALIFORNIA DEPARTMENT OF TRANSPORTATION AND RV CONCRETE, INC. |

**Tentative Ruling:** Motion for Summary Judgment Denied. Motion for Judgment on the Pleadings against Smith and Hernandez on the First, Second, and Third Causes of Action is granted with 20 days leave to amend. Motion for Summary Judgment by RV Concrete, Inc. is Denied.

**Procedural Issues:** This motion is brought as to the Blackburns' causes of action for dangerous condition of public property and survival action (first and fourth causes of action); Rosalinda Smith and Theresa Hernandez' causes of action for wrongful death, negligence, emotional distress, and dangerous condition of public property; and